



CHAPTER cli.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Aldershot Gas and Water Amersham Beaconsfield and District Water St. David's Water and Gas St. Neot's Water and Wexford Gas.

A.D. 1903.

[11th August 1903.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed:

33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation Act 1903.

Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Confirmation
of Orders in
schedule.

A.D. 1903.

Special provisions as to
houses of
labouring
class.

3. The Undertakers mentioned in the said Orders shall not under the powers of this Act or of the said Orders purchase or acquire in any city borough or urban district or in any parish or part of a parish not being an urban district ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but which have been or shall be subsequently so occupied. If any Undertakers purchase or acquire any house or houses under the powers of this Act or of the said Orders in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board in England or Ireland as the case may be by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. The expression "house" means any tenement separately occupied by any person or persons.

SCHEDULE.

A.D. 1903.

LIST OF ORDERS.

ALDERSHOT GAS AND WATER.—Order empowering the Aldershot Gas and Water Company to raise additional capital to extend their existing gasworks and for other purposes.

AMERSHAM BEACONSFIELD AND DISTRICT WATER.—Order empowering the Amersham Beaconsfield and District Waterworks Company Limited to extend their limits of supply to construct and maintain additional waterworks and to raise additional capital.

ST. DAVID'S WATER AND GAS.—Order empowering the St. David's Water and Gas Company to raise additional capital for the purposes of their water and gas undertaking and for other purposes.

ST. NEOT'S WATER.—Order empowering the St. Neot's Water Company to raise additional capital.

WEXFORD GAS.—Order empowering the Wexford Gas Consumers Company (Limited) to maintain and continue gasworks and to manufacture and supply gas in the borough of Wexford in the county of Wexford and for other purposes.

A.D. 1903.

ALDERSHOT GAS AND WATER.

Aldershot. *Order empowering the Aldershot Gas and Water Company to raise additional capital to extend their existing Gasworks and for other purposes.*

Short title. 1. This Order may be cited as the Aldershot Gas and Water Order 1903.

Commence-
ment of Order. 2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “the commencement of this Order.”

Construction
of Order. 3. The Aldershot Gas and Water Act 1866 (hereinafter referred to as “the Act of 1866”) the North Camp and Farnboro’ District Gas Order 1877 (hereinafter referred to as “the Order of 1877”) the Aldershot Gas and Water Order 1879 (hereinafter referred to as “the Order of 1879”) the Aldershot Gas and Water Order 1890 (hereinafter referred to as “the Order of 1890”) the Aldershot Gas and Water Act 1896 (hereinafter referred to as “the Act of 1896”) and the Aldershot Gas and Water Act 1901 (hereinafter referred to as “the Act of 1901”) and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Incorporation
of Acts 4. The following Acts and parts of Acts are hereby incorporated with this Order (namely) :—

The provisions of the Companies Clauses Consolidation Act 1845 with reference to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedy of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

[3 EDW. 7.] *Gas and Water Orders Confirmation* [Ch. cli.]
Act, 1903.

Part I. (Cancellation and Surrender of Shares) Part II. (Additional Capital) and Part III. (Debenture Stock) of the Companies Clauses Act 1863 as amended by subsequent Acts: A.D. 1903.
Aldershot.

The Gasworks Clauses Acts 1847 and 1871.

For the purpose of such incorporation the term “special Act” in the said Acts shall be construed to mean this Order and the term “Company” shall mean the Undertakers.

5. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings. Interpretation.

Undertakers.

6. The Aldershot Gas and Water Company incorporated by the Act of 1866 shall be the Undertakers for the purposes of this Order and are in this Order referred to as “the Undertakers.” Undertakers.

Additional Capital.

7. In addition to the original and additional capital authorised to be raised by the Undertakers under the Act of 1866 the Order of 1879 the Order of 1890 the Act of 1896 and the Act of 1901 they may— Additional capital.

- (1) Raise additional capital not exceeding in the whole one hundred thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Undertakers shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds. Any preference shares or stock created and issued under the powers of this Order shall be denominated G preference shares or stock and shall rank next after the F preference shares of the Undertakers authorised by the Act of 1901 and any new ordinary shares or stock so created and issued shall rank *pari passu* with the existing ordinary shares of the Undertakers:
- (2) Borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Order authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully

A.D. 1903.

Aldershot.

paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Undertakers and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

New shares or stock to be subject to same incidents as other shares or stock.

8. Except as by this Order otherwise provided the capital in new shares or stock created by the Undertakers under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital.

New shares or stock to form part of capital of Undertakers.

9. The capital in new shares or stock so created shall form part of the capital of the Undertakers.

Restriction as to votes in respect of preferential shares or stock.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

New shares or stock to be offered by auction or tender.

11. Notwithstanding anything in this Order contained the Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holders of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if any bid or offer by tender made by any holder of shares or stock of the Undertakers be the same in amount as the bid or offer made by any other person for the same lot the bid or offer of such holder shall be accepted in preference.

Purchase money of capital sold to be paid within three months.

12. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

13. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of the council of every district wholly or partly included in the limits of the Undertakers for the supply of gas or water and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more newspapers circulating within the limits of the Undertakers for the supply of gas or water.

A.D. 1903.

Aldershot.

Notice to be given as to sale of shares or stock.

14. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in the manner provided by the Companies Clauses Act 1863 Provided that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares and stock created under the powers of this Order and the reserve put upon such shares or stock may upon the second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock.

15. Any sum of money which may arise from the issue of any shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that in any case where a power to raise money by borrowing or to create an insurance or reserve fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Application of premium arising on issue of shares or stock.

16. The profits of the Undertakers to be divided in any year among the holders of stock or shares in the additional capital by this Order authorised shall not exceed the following rates that is to say the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Limits of dividend on new capital.

17. In case in any half-year the funds of the Undertakers applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock or shares in the

Dividends on different classes of stock or shares to be paid proportionately.

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. capital of the Undertakers a proportionate reduction shall be made in
the dividend of each class.

Aldershot.

Limit of
interest on
money
borrowed.

18. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

Existing
mortgages to
have priority.

19. All mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament before the commencement of this Order and then subsisting shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Order but nothing in this section contained shall affect the priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Repeal of provisions of former Acts and Orders with respect to appointment of receiver.

20. Every provision in any Act or Order relating to the Undertakers passed or made before the commencement of this Order by which the mortgagees of the Undertakers are empowered to enforce payment of principal and interest or principal or interest due on their mortgages by the appointment of a receiver is hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the commencement of this Order.

Appointment of receiver.

21. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture stock.

22. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 35 of the Act of 1896.

Receipt in case of persons not sui juris.

23. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers.

Priority of mortgages over other debts.

24. All money raised or to be raised by the Undertakers on mortgage or debenture stock shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made or to be granted or made to the Undertakers which is entitled to rank in

priority to or *pari passu* with the interest on their mortgages or debenture stock. A.D. 1903.

25. The provisions of this Order with respect to the sale of shares or stock by auction or tender shall apply *mutatis mutandis* to any debenture stock to be created by the Undertakers under the powers of this Order. *Aldershot.*
Debenture stock to be sold by auction or tender.

26. Of the moneys by this Order authorised to be raised a sum of forty thousand pounds shall be allocated to water purposes and shall be spent upon such purposes and shall accordingly not be expended upon the gas purposes of the Undertakers. Allocation of moneys to water purposes.

27. All moneys raised by the Undertakers under this Order or any prior Act or Order whether by shares or stock or borrowing or debenture stock shall be applied as to forty thousand pounds part thereof on the water purposes of the Undertakers only as herein-before provided and as to the balance may be applied subject to the proviso hereinafter contained for the purposes of the undertaking authorised by the Act of 1866 the Orders of 1877 1879 and 1890 the Acts of 1896 and 1901 and this Order and for the general purposes of the Undertakers being in all cases purposes to which capital is properly applicable. Provided always that notwithstanding anything in the Act of 1896 or this Order or any other Act or Order contained it shall not be lawful for the Undertakers to expend or apply any part of the capital by this Order authorised to be raised or of the money belonging to the Undertakers for the purpose of affording a supply of gas in any part of the district within which the York Town and Blackwater Gas and Coke Company Limited are by the York Town and Blackwater Gas Order 1890 authorised to supply gas. Application of moneys.

Construction and Maintenance of Gasworks.

28. The Undertakers may on the lands shown on the maps deposited for the purposes of this Order and described in the Schedule to this Order annexed maintain and continue alter and enlarge renew or discontinue their existing gasworks and works connected therewith and may erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within their limits of supply and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas. Undertakers may make maintain and continue gasworks on lands described in schedule.

Relating to the Water Undertaking.

29. The Undertakers shall within four years from the commencement of this Order construct a water tank the bottom whereof shall be at a level of not less than forty feet above the highest ground within that portion of the parish of Aldershot which lies to the east of the main road leading from Undertakers to construct raised water tank.

A.D. 1903. Farnham to Farnborough such tank to be of a capacity sufficient to contain
Aldershot. one fourth of the average daily supply of water delivered by the Undertakers at the time of commencing such construction to houses situate on land more than three hundred and forty-five feet above Ordnance datum such average daily supply to be taken for the purposes of this section at twenty-five gallons per head.

Costs of Order.

Costs of Order. 30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULE.

LANDS FOR GAS PURPOSES.

Firstly All that piece or parcel of land situate in the parish of Aldershot in the county of Southampton containing by estimation four acres or thereabouts as the said piece or parcel of land is bounded on the north and east by the Blackwater stream on the north by the public highway leading from Aldershot to Ash and on the south and west in part by land belonging or reputed to belong to Agnes Hewett in other part by land belonging or reputed to belong to Thomas Heath and in other part by land belonging or reputed to belong to W. Montagu Robertson and Yaldon Henry Knowles as trustees of the late Thomas Payne which said piece or parcel of land has already been acquired by the Company under the powers of the Act of 1896 for the purposes of the tramroad by that Act authorised and on part whereof the Company is authorised to erect and maintain works for the storage of gas under the provisions of the Act of 1901.

Secondly All that piece or parcel of land situate on the west side of the Company's gasworks at Lynchford Road in the parish of Farnborough in the said county of Southampton and now in the occupation of and belonging to the Company containing by admeasurement one acre or thereabouts and which said piece of land forms part of the field numbered 301 on the $\frac{1}{2500}$ Ordnance survey of the said parish.

AMERSHAM BEACONSFIELD AND DISTRICT WATER. A.D. 1903.

Order empowering the Amersham Beaconsfield and District Waterworks Company Limited to extend their limits of supply to construct and maintain additional waterworks and to raise additional capital. *Amersham Beaconsfield and District.*

1. This Order may be cited as the Amersham Beaconsfield and District Water Order 1903. Short title.
2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.
3. The Amersham Beaconsfield and District Water Order 1896 (in this Order referred to as "the Order of 1896") and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order. Construction of Order.
4. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are except where expressly varied by this Order incorporated with and form part of this Order. For the purposes of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order. Incorporation of Acts.
5. The several words and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings. Interpretation.
6. The Undertakers shall have and may exercise subject to the provisions of this Order within the following new limits all the like powers privileges and authorities for or in relation to the supply of water and be subject to all the duties and obligations in respect thereof as they now have and are subject to within the limits of the Order of 1896 as defined by that Order and the expression "the limits of supply" in the Order of 1896 shall from and after the commencement of this Order be deemed to include such new limits. Extension of limits of supply.

The said new limits are as follows :—

That part of the parish of Chesham Bois in the rural district of Amersham which lies north of an imaginary line drawn across such parish from east to west passing immediately north of St. Leonards Church and immediately south of Mayhall Farm ;

That part of the parish of Chepping Wycombe (Rural) in the rural district of Wycombe as lies to the east of an imaginary line drawn across such parish in a southerly direction from the Little Inkerman Farm House in the parish of Penn to a point in Hammersley Lane at a distance of 58 chains measured in a direct line from the junction

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
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 and District.*

of Hammersley Lane with the High Road between London and Oxford and from such last-mentioned point in a south or a south-easterly direction to a point in the boundary line between the parishes of Chepping Wycombe (Rural) and Penn at the junction of the easterly and southerly boundaries respectively of such parishes and 32 chains or thereabouts measured in a southerly direction from Bottom Farm in the parish of Penn ;

All in the county of Buckingham.

Where Undertakers not furnishing sufficient supply local authority or company may supply.

7. If at any time after the expiration of six years from the commencement of this Order the Undertakers are not furnishing within the new limits defined by this Order a sufficient supply of water in accordance with the provisions of the Order of 1896 and this Order in any part of the district of any local authority included within the limits of supply the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Undertakers as if in either case there were no company authorised by this Order to supply water therein.

If any difference arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Undertakers.

Undertakers.

8. The Amersham Beaconsfield and District Waterworks Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Additional Capital.

Additional capital.

9. The limitation prescribed by the Order of 1896 with respect to the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising further share capital for the purposes of the undertaking authorised by the Order of 1896 and this Order to which capital is properly applicable (in this Order referred to as "the additional capital") not exceeding thirty-four thousand pounds including any premiums which may be realised on the sale of any shares under the provisions of this Order. Provided that the share capital of the Undertakers for the said purposes shall not exceed in the whole including both capital raised under the Order of 1896 and under this Order the sum of forty-six thousand pounds unless any increase thereto be hereafter authorised by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New shares or stock to be offered by

10. The Undertakers shall when any shares or stock forming part of the additional capital by this Order authorised are to be issued and before offering

the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender made by any holder of shares or stock be the same in amount as the bidding or offer by tender made by any other person the bidding or offer of such holder shall be accepted in preference.

A.D. 1903.

Amersham
 Beaconsfield
 and District.
 auction or
 tender.

11. It shall be one of the conditions of any sale of shares or stock under this Order that the full price of each share including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Purchase
 money of
 capital sold to
 be paid within
 three months.

12. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each two consecutive weeks in one or more newspapers circulating within the limits of supply.

Notice to be
 given as to sale
 of shares or
 stock.

13. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers. Provided that any shares or stock so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares and stock forming part of the additional capital and the reserve put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Shares or
 stock not sold
 by auction or
 by tender to be
 offered to
 holders of ordi-
 nary shares or
 stock.

14. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting

Application
 of premium
 arising on

A.D. 1903. therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in acquiring the additional lands hereinafter referred to or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

*Amersham
Beaconsfield
and District.*
issue of shares
or stock.

Limits of
dividend on
capital.

15. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital as defined by this Order than the standard rates of dividend hereinafter mentioned namely seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Dividends on
different
classes of
shares or stock
to be paid
rateably.

16. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

Limit of
borrowing
powers.

17. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers actually raised by the issue of shares or stock and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Application
of money.

18. The money raised under this Order shall be applied to the purposes of the undertaking authorised by the Order of 1896 and this Order to which capital is properly applicable.

Lands.

Power to
acquire lands.

19. The Undertakers may by agreement purchase or take on lease and use any additional lands which they may require for the purposes of the undertaking and any easements rights or privileges (not being easements rights or privileges to take water in which persons other than the grantors have an interest) in over or affecting any lands which they may require for such purposes Provided that they shall not create or permit a nuisance on any such lands and that they shall not at any time hold for the purposes of this Order and the Order of 1896 more than ten acres of land in the whole Provided also that no building shall be erected on such lands except such as are required for the purposes of the undertaking.

Persons under
disability may
grant ease-
ments &c. to
Undertakers.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the said Acts grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors

[3 EDW. 7.] *Gas and Water Orders Confirmation* [Ch. cli.]
Act, 1903.

have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants or to such easements rights and privileges as aforesaid.

A.D. 1903.

*Amersham
Beaconsfield
and District.*

Waterworks.

21. The Undertakers may on the lands to be acquired by them as aforesaid and so long as they are possessed of the same or so long as they may be entitled to do so under agreement make and maintain in the lines and according to the levels shown on the plans and sections deposited for the purposes of this Order the new works hereinafter described in like manner as works made and maintained under the Order of 1896 and they may subject to the provisions of this Order and the Order of 1896 supply and sell water within the limits of supply.

Power to
construct
additional
waterworks.

The new works authorised by this Order will be wholly situate in the county of Buckingham and are as follows :—

- (1) A line or lines of pipes commencing in the parish of Penn in the rural district of Amersham at a point in the main road leading from Amersham to Wycombe opposite the fourth mile post from Amersham or thereabouts and terminating in the service reservoir next hereinafter described which said line or lines of pipes will be situate in or pass from through and into the several parishes and places following or some of them that is to say Penn aforesaid and Hughenden and Chepping Wycombe (Rural) in the rural district of Wycombe :
- (2) A service reservoir to be wholly situate in the parish of Hughenden in the rural district of Wycombe in the field or enclosure numbered 200 on the 25th 1890 Ordnance map of that parish (2nd edition 1898).

22. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of deviation shown on the plans deposited for the purposes of this section but in no case beyond the width of any road shown on the said plans and the Undertakers may deviate vertically from the levels shown on the sections deposited for the purposes of this Order to any extent not exceeding 3 feet upwards or 7 feet downwards Provided that no conduit or line of pipes shall be raised above the surface of the ground unless so shown on the said sections and then only to the extent so shown.

Limits of
deviation.

23. The works authorised by this Order shall be commenced constructed and completed within the time and subject to the conditions prescribed by section 11 of the Gas and Water Works Facilities Act 1870 Provided that subject to the restrictions and provisions of this Order the Undertakers may from time to time alter enlarge and extend their engines machinery tanks wells pipes and other works in such way and manner as may be requisite or advisable for supplying water within the limits of supply.

Period for
completion of
works.

24. If any difference arise between the Undertakers and any railway canal or other company whose land or works the Undertakers have power to

As to pipes
crossing the
works of a

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. cross under the authority of this Order or the Order of 1896 as to the mode of laying down repairing altering or enlarging their main pipes or other works in over or upon such land or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

*Amersham
Beaconsfield
and District.*
railway or
other com-
pany.
For protection
of Bucks
County
Council.

25. Notwithstanding anything in the Order of 1896 or this Order it shall not be lawful for the Undertakers to supply any water outside the county of Buckingham except to the extent provided by section 22 of the Order of 1896.

Miscellaneous.

Costs of Order. 26. All the costs charges and expenses of and incidental to the applying for preparing or confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

S C H E D U L E.

DESCRIPTION OF LAND PROPOSED TO BE PURCHASED.

All that piece of land situate in the parish of Hughenden in the county of Buckingham belonging or reputed to belong to Thomas Somers Vernon Cocks part of a field numbered 200 on the $\frac{1}{2500}$ Ordnance map for the parish of Hughenden bounded by other land of the said Thomas Somers Vernon Cocks and containing in the whole two roods or thereabouts.

ST. DAVID'S WATER AND GAS.

St. David's. *Order empowering the St. David's Water and Gas Company to raise additional capital for the purposes of their water and gas undertakings and for other purposes.*

Preliminary.

Short title. 1. This Order may be cited as the St. David's Water and Gas Order 1903.

Commence-
ment of Order. 2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Construction
of Order. 3. The St. David's Water and Gas Act 1899 (in this Order referred to as "the Act of 1899") as amended by this Order and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

[3 EDW. 7.] *Gas and Water Orders Confirmation* [Ch. cli.]
Act, 1903.

4. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are incorporated with and form part of this Order (that is to say):—

A.D. 1903.
St. David's.
Incorporation
of Acts.

The provisions of the Companies Clauses Acts 1845 to 1889 with respect to the following matters :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to the cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 and the Companies Clauses Act 1869 the Waterworks Clauses Acts 1847 and 1863 and the Gasworks Clauses Acts 1847 and 1871.

5. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and the term “Company” shall mean the Undertakers.

Interpretation.

Undertakers.

6. The St. David's Water and Gas Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as “the Undertakers.”

Undertakers.

Capital.

7. In addition to the capital already authorised to be raised by the Undertakers under the Act of 1899 (in this Order referred to as “the existing capital”) they may for the purposes of their water and gas undertakings—

Additional
capital.

- (1) Raise further sums not exceeding in the whole nine thousand six hundred pounds by the issue of ordinary shares or stock or preference shares or stock or wholly or partly by any one or more of those modes respectively (in this Order referred to as “the additional capital”) but the Undertakers shall not issue any share under the

A.D. 1903.

St. David's.

authority of this Order of less nominal value than five pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of nine thousand six hundred pounds or to raise by the issue of preference shares or stock a greater amount of the additional capital than four thousand eight hundred pounds :

- (2) Borrow on mortgage in respect of the additional capital by this Order authorised to be raised by the issue of ordinary or preference shares or stock any sum or sums not exceeding in the whole one-third part of the amount payable in respect of the additional capital at the time actually issued including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until shares or stock for so much of the additional capital in respect of which such borrowing powers are sought to be exercised together with the premiums (if any) realised on the sale thereof have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premiums (if any) have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Except as otherwise provided new shares to be subject to same incidents as other shares.

8. Except as by this Order otherwise provided the additional capital created by the Undertakers under this Order and the shares or stock therein and the holders thereof respectively shall be subject and entitled to all the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the existing capital of the Undertakers of the same class or description and the shares in the additional capital were shares in that capital. The capital in shares or stock so created shall form part of the capital of the Undertakers.

New capital to be offered by auction or tender.

9. The Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the

Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock shall be the same in amount as the bidding or offer by tender of any other person for the same lot the bidding or offer by tender of such holder shall be accepted in preference.

A.D. 1903.

St. David's.

10. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Purchase
money of
shares or stock
to be paid
within three
months.

11. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Notice to be
given as to
sale of shares
or stock.

12. When any shares or stock created under the provisions of this Order shall have been offered for sale by auction or by tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in the manner prescribed by the Companies Clauses Act 1863 Provided that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional capital and the reserve put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so on until the whole amount of such shares or stock is sold.

Shares or
stock not sold
by auction or
tender to be
offered to
holders of ordi-
nary shares or
stock.

13. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that all such sums shall be

Application
of premium
arising on
issue of shares
or stock.

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. deemed to be part of the paid-up capital of the Undertakers for the purpose
St. David's. of determining the amount which the Undertakers may borrow under this
Order and the amount which the Undertakers may invest to form a reserve
fund.

Limits of 14. The Undertakers shall not in any year declare or make out of their
dividend on profits any larger dividends on the additional capital than seven pounds in
new capital. respect of every one hundred pounds actually paid up of so much of the
additional capital as may be issued as ordinary capital or five pounds in
respect of every one hundred pounds actually paid up of so much of the
additional capital as may be issued as preference capital.

Prescribed 15. In case in any year or in any half-year if the Undertakers declare
rates to be a dividend half-yearly the net revenues of the Undertakers applicable to
paid propor- dividend are insufficient to pay the full amount of the prescribed rate of
tionately. dividend on each class of ordinary shares or stock of the Undertakers a
proportionate reduction shall be made in the dividends payable on each class.

Dividends on 16. Every person who becomes entitled to shares or stock in the
new shares or additional capital shall in respect of the same be a holder of shares or
stock. stock in the capital of the Undertakers and shall be entitled to a dividend
with the other holders of shares or stock of the same class or description
proportioned to the whole amount from time to time called and paid on
such shares or to the whole amount of such stock as the case may be.

Restrictions as 17. Except as otherwise expressly provided by the resolution creating
to votes in the same no person shall be entitled to vote in respect of any new shares
respect of pre- or stock to which a preferential dividend shall be assigned.

Receipt in case 18. If any money is payable to a shareholder stockholder mortgagee
of persons not or debenture stockholder being a minor idiot or lunatic the receipt of the
sui juris. guardian or committee of his estate shall be a sufficient discharge to the
Undertakers.

Debenture 19. The Undertakers may create and issue debenture stock subject
stock. to the provisions of Part III. of the Companies Clauses Act 1863 but
notwithstanding anything therein or in any Act previous to this Order
contained the interest of all debenture stock and of all mortgages at any time
after the commencement of this Order created and issued or granted by the
Undertakers under any previous Act or this Order or any subsequent Act
or Order shall (subject to the provisions of any subsequent Act or Order)
rank *pari passu* (without respect to the dates of the securities or of the Acts
of Parliament Orders or resolutions by which the stock and mortgages were
authorised) and shall have priority over all principal moneys secured by
such mortgages Notice of the effect of this enactment shall be endorsed on
all mortgages and certificates of debenture stock.

For appoint- 20. Section 10 (For appointment of a receiver) of the Act of 1899
ment of a is hereby repealed as from the commencement of this Order but without
receiver. prejudice to any appointment heretofore made or to the continuance of any
proceedings then pending and after the commencement of this Order the

[3 EDW. 7.] *Gas and Water Orders Confirmation* [Ch. cli.]
Act, 1903.

mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers.

A.D. 1903.
St. David's.

21. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

Limits of
interest on
money bor-
rowed.

22. All moneys raised under this Order shall be applied only to the purposes of the Act of 1899 and this Order to which capital is properly applicable.

Application of
moneys raised
under this
Order.

23. Section 8 (Power to borrow) of the Act of 1899 is hereby amended as from the commencement of this Order by the insertion of the words "five thousand three hundred pounds" instead of the words "four thousand pounds" and the words "one-third" instead of "one-fourth" in that section.

Amendment
of Act of 1899.

Water Powers.

24. The Company shall not be compelled to supply with water any watercloset or any bath or the apparatus or pipes connected therewith respectively unless the same be so constructed and used as to prevent the contamination of the water of the Company nor any bath which shall be capable of containing when filled for use more than fifty gallons of water Provided that the foregoing provisions shall not entitle the Company to cut off or discontinue the domestic supply of the house in which such watercloset or bath is situate.

Company not
to be com-
pelled to sup-
ply certain
closets or
baths.

Gas Powers.

25. The prescribed number of candles shall be not less than fourteen in lieu of fifteen as prescribed by section 46 of the Act of 1899.

Quality of gas.

26. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctua-
tors for gas
engines.

27. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent due from

Power to re-
fuse to supply
persons in debt
for other pre-
mises.

A.D. 1903. him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

St. David's.

General Powers.

Fittings not
to be subject
to distress.

28. Any fittings let for hire by the Undertakers shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Discounts.

29. The Undertakers may if they think fit allow discounts or rebates not exceeding in any case twenty per centum to consumers of water or gas in consideration of prompt payment or of large consumption upon such scale and subject to such conditions and regulations as may be prescribed by the Undertakers. Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers.

Costs of Order.

30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

ST. NEOT'S WATER.

St. Neot's.

Order empowering the St. Neot's Water Company to raise additional Capital.

Short title.

1. This Order may be cited as the St. Neot's Water Order 1903.

Commence-
ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Construction
of Order.

3. The St. Neot's Water Act 1897 (in this Order referred to as "the Act of 1897") the St. Neot's Water Order 1898 (in this Order referred to as "the Order of 1898") and the St. Neot's Water Act 1899 (in this Order referred to as "the Act of 1899") and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Incorporation
of Acts.

4. The provisions of the Companies Clauses Acts 1845 to 1889 with respect to the several matters following (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls ;	A.D. 1903.
The remedies of creditors of the Company against the shareholders ;	<i>St. Neot's.</i>
The borrowing of money by the Company on mortgage or bond ;	
The consolidation of the shares into stock ;	
The general meetings of the Company and the exercise of the right of voting by the shareholders ;	
The making of dividends ;	
The giving of notices ; and	
The provision to be made for affording access to the special Act by all parties interested ;	

and Part I. (relating to the cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 are (except where expressly varied by this Order) incorporated with and form part of this Order.

For the purpose of such incorporation the term “special Act” in the said Acts shall be construed to mean this Order and the term “Company” shall mean the Undertakers.

5. In this Order the expression “the Company’s Acts” means the Act of 1897 the Order of 1898 and the Act of 1899 and the several words terms and expressions to which by any Act in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings. Interpretation.

6. The St Neot’s Water Company incorporated by the Act of 1897 shall be the Undertakers for the purposes of this Order and are in this Order referred to as “the Undertakers.” Undertakers.

7. In addition to the capital already authorised to be raised by the Undertakers they may— Power to raise additional capital.

(1) Raise any further sums not exceeding in the whole six thousand pounds by the creation and issue at their option of new ordinary shares or stock or partly by new ordinary shares or stock and partly by new preference shares or stock (in this Order referred to as “the new capital”) but the Undertakers shall not issue under the authority of this Order any share of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale of the shares or stock authorised to be issued under the authority of this Order the sum of six thousand pounds And provided further that not more than two thousand pounds in the whole shall be raised under this Order by means of preference shares or stock :

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
Act, 1903.

- A.D. 1903. (2) Borrow on mortgage in respect of the new capital by this Order
St. Neot's. authorised to be raised by the issue of shares or stock any sum or sums
not exceeding in the whole one-third part of the amount payable in
respect of the new capital at the time actually issued including the
premiums (if any) realised on the sale thereof but no part thereof
shall be borrowed until shares or stock for so much of the new capital
in respect of which such borrowing powers are sought to be exercised
together with the premiums (if any) realised on the sale thereof have
been fully paid up and the Undertakers have proved to the justice
who is to certify under the fortieth section of the Companies Clauses
Consolidation Act 1845 before he so certifies that such shares or stock
and premiums (if any) have been fully paid and upon production to
such justice of the books of the Undertakers and such other evidence
as he may think sufficient he shall grant a certificate that the proof
aforesaid has been given which certificate shall be sufficient evidence
thereof.
- As to con- 8. The Undertakers shall not have power to raise the money by this
version of bor- Order authorised to be borrowed on mortgage or by the creation and issue of
rowed money debenture stock or any part thereof respectively by the creation of shares or
into capital. stock instead of by borrowing or to convert into share capital any money
borrowed under the provisions of this Order.
- New shares or 9. The new capital created by the Undertakers under this Order and
stock to be the new shares or stock therein and the holders thereof respectively shall be
subject to same subject and entitled to the same powers provisions liabilities rights privileges
incidents as and incidents whatsoever in all respects as if the new capital were part of the
other shares or existing capital of the Undertakers of the same class or description and the
stock. new shares or stock were shares or stock in the capital The capital in new
shares or stock shall form part of the capital of the Undertakers.
- Dividends on 10. Every person who becomes entitled to shares or stock in the new
new capital. capital shall in respect of the same be a holder of shares or stock in the
Company and shall be entitled to a dividend with the other holders of shares
or stock of the same class or description proportioned to the whole amount
from time to time called up and paid on the shares or stock so held by him.
- Restrictions 11. Except as otherwise expressly provided by the resolution creating
as to votes in the same no person shall be entitled to vote in respect of any new shares or
respect of stock to which a preferential dividend shall be assigned nor be qualified in
preferential respect of such shares to act as a director.
- New shares or 12. Notwithstanding anything in this Order contained the Undertakers
stock to be shall when any shares or stock created under the powers of this Order are to
offered by be issued and before offering the same to the holder of any other shares or
auction or stock of the Undertakers and whether the ordinary shares or ordinary stock
tender. of the Undertakers are or is at a premium or not offer the same for sale by
public auction or by tender in such manner at such times and subject to such
conditions of sale as the Undertakers shall determine Provided that at any
such sale no single lot shall comprise more than one hundred pounds nominal

value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bid or offer of any holder of shares or stock be the same in amount as the bid or offer of any other person the bid or offer of such holder shall be accepted in preference.

A.D. 1903.
St. Neot's.

13. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premiums given by any purchaser at such sale in respect thereof shall be paid to the Undertakers within three months after such sale.

Purchase money of capital sold to be paid within three months.

14. The intention to sell any such shares or stock by auction or by tender under the provisions of this Order shall be communicated in writing to the clerk of every local authority having jurisdiction within the limits of supply of the Undertakers and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within such limits of supply.

Notice to be given as to sale of shares or stock.

15. When any shares or stock created under the powers of this Order have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Undertakers in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock created under the powers of this Order except that the reserve put upon such shares or stock may upon such second auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold by auction or tender shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock.

16. Any sum of money which shall arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that for the purpose of ascertaining the maximum amount of the reserve fund of the

Application of premium arising on issue of shares or stock.

A.D. 1903. Undertakers the sum received by way of premium as aforesaid shall be reckoned as part of the nominal capital of the Undertakers.

St. Neot's.

Existing mortgages to have priority.

17. All debenture stock issued and mortgages and bonds granted by the Undertakers in pursuance of the powers of the Company's Acts shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over all mortgages to be granted under the authority of this Order.

Debenture stock.

18. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and such debenture stock shall be distinguished as second debenture stock and such debenture stock and the interest thereon shall rank after all mortgages bonds or debenture stock and the interest thereon respectively created or issued under the powers of any Act passed before the commencement of this Order. Notice of the priority of such mortgages bonds or debenture stock shall be endorsed on all mortgages and certificates of debenture stock granted or issued under the powers of this Order.

For appointment of receiver.

19. Every provision of the Company's Acts with respect to the appointment of a receiver is hereby repealed but without prejudice to any appointment heretofore made or any proceedings pending at the commencement of this Order under any such provision and after the commencement of this Order the mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Rates of dividend on shares or stock in new capital.

20. The Undertakers shall not in any one year make out of their profits any larger dividend on the new capital in shares or stock to be raised under the powers of this Order than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or at the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Dividends on different classes of ordinary capital to be paid proportionately.

21. In case in any half year the net revenue of the Undertakers applicable to dividend shall be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares or ordinary stock in the capital of the Undertakers a rateable reduction shall be made in the dividend of each class.

Limit of interest on money borrowed.

22. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than four and a half pounds per centum per annum in respect of any money borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

Application of moneys raised under this Order.

23. All moneys raised under this Order whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Order or of the Company's Acts to which capital is properly applicable.

24. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming of this Order and otherwise in relation thereto shall be paid by the Undertakers. A.D. 1903.
St. Neot's.
Costs of Order.

WEXFORD GAS.

Order empowering the Wexford Gas Consumers Company (Limited) to maintain and continue Gasworks and to manufacture and supply Gas in the Borough of Wexford in the County of Wexford and for other purposes. *Wexford.*

1. This Order may be cited as the Wexford Gas Order 1903. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by this Order and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order Provided that for the purpose of such incorporation section 35 of the said Gasworks Clauses Act 1847 shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates of dividend as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to the insurance fund. Incorporation
of Acts.

4. In this Order the expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the corporation" means the mayor aldermen and burgesses of the borough of Wexford and "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued. Interpretation.

[Ch. cli.] *Gas and Water Orders Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. 5. The limits within which the provisions of this Order shall be in force
Wexford. and have effect (in this Order referred to as “the limits of supply”) shall be
Limits of the borough of Wexford in the county of Wexford.
Order.

Undertakers.

Undertakers. 6. The Wexford Gas Consumers Company (Limited) shall be the
Undertakers for the purposes of this Order and are in this Order referred
to as “the Undertakers.”

Capital.

Capital. 7. The share capital of the Undertakers shall not for the purposes
of the undertaking exceed twenty thousand pounds consisting of the original
share capital already raised or authorised to be raised by the Undertakers
and in this Order referred to as “the original capital” amounting to fifteen
thousand pounds divided into three thousand shares of five pounds each
whereof one thousand two hundred are called A shares six hundred B shares
and one thousand two hundred C shares and of additional share capital (in
this Order referred to as “the additional capital”) to form part of and be
an addition to the original C shares and to be issued subject to the pro-
visions of this Order not exceeding five thousand pounds including any
premiums which may be obtained on the sale of any shares under the
provisions of this Order unless the Undertakers are hereafter authorised
to raise for such purposes further additional share capital by Provisional
Order under the Gas and Water Works Facilities Act 1870 or by Act of
Parliament.

New shares
to be offered
by auction or
tender.

8. The Undertakers shall when any shares forming part of the additional
capital are to be issued and before offering the same to the holder of any
other shares of the Undertakers and whether the ordinary shares of the
Undertakers are at a premium or not offer the same for sale by public
auction or tender in such manner at such times and subject to such conditions
of sale as the Undertakers may by special resolution determine Provided
that at any such sale no single lot shall comprise more than one hundred
pounds nominal value of shares and that the reserved price put upon such
shares shall not be less than the nominal value thereof and notice of the
amount of such reserved price shall be sent by the Undertakers in a sealed
letter to the Board of Trade not less than twenty-four hours before the day
of auction or the last day for the reception of tenders as the case may be
and such letter may be opened after such day of auction or last day for the
reception of tenders and not sooner and provided that no priority of tender
shall be allowed to any holder of shares of the Undertakers except that if
the bid or offer of any holder of shares or stock be the same in amount as
the bid or offer of any other person the bid or offer of such holder shall be
accepted in preference.

Purchase
money of
shares sold to
be paid within
three months.

9. It shall be one of the conditions of any sale of shares under the
provisions of this Order that the full price of each share including any
premium given by any purchaser at such sale in respect thereof shall be
paid to the Undertakers within three months after such sale.

[3 EDW. 7.] *Gas and Water Orders Confirmation* [Ch. cli.]
Act, 1903.

10. The intention to sell any shares by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the secretary of the committee of the Dublin Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

A.D. 1903.

Wexford.

Notice to be given as to sale of shares.

11. When any shares have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers. Provided that any shares so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares forming part of the additional capital and the reserve put upon such shares may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares not then sold shall be again offered to the holders of ordinary shares at the last-mentioned reserved price and so on until the whole amount of such shares is sold.

Shares not sold by auction or tender to be offered to shareholders.

12. Any sum of money which may arise from the issue of any shares under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of premium arising on issue of shares.

13. Except as in this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the original and additional capital than the standard rates of dividend hereinafter mentioned namely ten pounds in respect of every one hundred pounds actually paid up of the original capital of the A shares five pounds in respect of every one hundred pounds of the original B shares and five pounds in respect of every one hundred pounds actually paid up of the original C shares and five pounds in respect of every one hundred pounds actually paid up of the additional capital.

Limits of dividend on capital.

14. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares in the original and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on different classes of ordinary shares to be paid proportionately.

15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one fourth of the amount of the capital of the Undertakers at the time

Limit of borrowing powers.

A.D. 1903. actually raised by the issue of shares including any premium that may be
Wexford. obtained on the sale of shares under the provisions of this Order and no
higher rate of interest than five pounds per centum per annum shall be paid
by the Undertakers without the consent of the Board of Trade in respect of
any moneys borrowed by the Undertakers after the commencement of this
Order and secured as aforesaid.

If profits ex-
ceed amount
limited excess
may be in-
vested and
form an in-
surance fund.

16. If the clear profits of the undertaking in any year amount to a larger
sum than is sufficient to pay the prescribed rates the excess beyond the sum
necessary for that purpose may to the extent of one per centum per annum
upon the paid-up capital of the Undertakers for the time being be invested
in Government or other securities and the dividends and interest arising from
such securities shall also be invested in the same or like securities in order
that the same may accumulate at compound interest until the fund so formed
amounts to a sum equal to one-twentieth part of the paid-up capital of the
Undertakers for the time being which fund shall form an insurance fund to
meet any extraordinary claim demand or charge which may at any time
arise against or fall upon the Undertakers from accident strike or other
circumstances which in the opinion of a justice due care and management could
not have prevented and if such fund be at any time below the said limit of
one-twentieth part of the paid-up capital for the time being it may thereafter
be again made up to said limit and so on as often as the occasion may require
Provided that when and so often as the said fund reaches the said limit of
one-twentieth part of the paid-up capital the interest thereon shall be carried
to the credit of the fund available for dividend Provided also that resort
may be had to the insurance fund to meet any such extraordinary claim
demand or charge as aforesaid although such fund may not at the time have
reached or may have been reduced below the full amount of one-twentieth
part of the paid-up capital for the time being as aforesaid.

Application of
excess of pro-
fits over pre-
scribed rates.

17. If the clear profits of the undertaking in any year amount to a larger
sum than is sufficient to pay the prescribed rates the excess or such proportion
of it as is not carried to the insurance fund shall be carried to the credit of
the divisible profits of the undertaking for the next following year.

Power to
create a re-
serve fund and
application
thereof.

18. Where in any year the standard rates of dividend are by reason of a
diminution of the standard price charged by the Undertakers in such year
increased then out of the amount of the divisible profits of the Undertakers
applicable to the payment of such increase the Undertakers may in such year
set apart such sum as they think fit by way of reserve fund and all sums
(if any) so set apart by the Undertakers and any reserve or other fund of a
similar character of the Undertakers existing at the commencement of this
Order may be invested in Government or other securities and the dividends
and interest arising from such securities may also be invested in the same or
like securities in order that the same may accumulate at compound interest
and the fund so formed shall be called "the reserve fund" and shall be
applicable to the payment of dividend in any year in which the clear profits
of the Undertakers are insufficient to enable the Undertakers in such year
to pay the prescribed rates and save as by this Order specially provided no
sum shall in any year be carried by the Undertakers to any reserve fund.

Purchase of Lands.

A.D. 1903.

19. The Undertakers may for the purpose of the gas undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands described in the Schedule to this Order annexed any lands which they may require provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said Schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said Schedule.

Wexford.
Power to purchase additional lands.

*Maintenance and continuance of Gasworks Manufacture and sale of Gas
Coke and Residual Products.*

20. The Undertakers on the lands shown on the map deposited for the purposes of this Order and described in the Schedule to this Order annexed while they are possessed of the same may maintain and continue alter enlarge renew or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter and enlarge retorts gas-holders reservoirs purifiers meters apparatus and works for the manufacture and storing of gas and of coke asphaltum pitch coal-tar ammoniacal liquor oil and other residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas and supply and sell the same within the limits of supply and may on the same lands manufacture and store coke asphaltum pitch coal-tar lime ammoniacal liquor oil and all such other residual products as aforesaid and may sell and dispose of the same at their works and elsewhere and they may also erect construct and maintain alter enlarge extend and renew or discontinue houses offices buildings and other works connected with the undertaking.

Undertakers may maintain and continue gasworks on lands described in schedule and may make and sell gas &c.

21. Subject to the provisions in this section contained the Undertakers may purchase or hire and supply sell or let on hire but shall not manufacture gas meters fittings gas stoves and cooking and other apparatus and may also purchase hire sell let or deal in and contract for doing work in connection with but shall not manufacture fittings tubes meters pipes apparatus stoves ranges and apparatus for heating for domestic agricultural manufacturing and other purposes by means of gas and all articles and things in any way connected with gasworks or with the supply use or consumption of gas and may take charges and remuneration in respect thereof Provided always that notwithstanding anything in this Order or in any Act incorporated with this Order the Undertakers shall without making any charge in respect thereof supply to any person taking a supply of gas the meter necessary for measuring the quantity of gas consumed and shall without making any charge keep the same in proper order for correctly registering the quantity of gas consumed except that in the event of the meter having been wilfully damaged while upon the consumer's premises the expense of repairing such damage may be recovered by the Undertakers from the consumer in the same manner as gas rates are recoverable.

Power to supply gas meters &c.

A.D. 1903.

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*Weaford.*Power to take
licences for
use of patents.

22. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply and distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from the materials used therein.

Undertakers
may contract
for sale of gas
in bulk.

23. The Undertakers may contract with any local authority company or person beyond the limits of supply of the Undertakers (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Differences
with road
authorities or
railway or
other com-
panies.

24. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Quality of Gas.

Quality of gas.

25. The quality of gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

*Price of Gas.*Fixing maxi-
mum price of
gas with
sliding scale
as to dividend.

26. The standard price to be charged by the Undertakers for gas supplied by them shall not exceed three shillings and fourpence per thousand cubic feet Provided that the Undertakers may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or in case the price charged by them for gas shall be below two shillings and tenpence per thousand cubic feet to an increase in the dividend payable by the Undertakers on the ordinary share capital as follows :—

In respect of any year during which the price charged by the Undertakers shall have been one penny or more above the standard price the dividend payable by the Undertakers shall in respect of each whole penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five

shillings on every hundred pounds of the A shares and two shillings and sixpence on every hundred pounds of the B shares and on every hundred pounds paid up of the C shares and so in proportion for any fraction of one hundred pounds :

A.D. 1903.

Wearford.

And in respect of any year during which the price charged by the Undertakers shall have been one penny or more below two shillings and tenpence the dividend payable by the Undertakers may in respect of each whole penny by which the price shall have been reduced below the said sum of two shillings and tenpence be increased above the standard rate by five shillings on every hundred pounds of the A shares and two shillings and sixpence on every hundred pounds of the B shares and on every hundred pounds paid up of the C shares and so in proportion for any fraction of one hundred pounds.

Pressure of Gas.

27. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

Pressure of
gas.*Testing of Gas.*

28. The Undertakers shall within six months after the commencement of this Order cause to be provided at their works a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Provided that any other description of burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may subject to the terms of his appointment at such testing place or elsewhere as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place not being the immediate approach to any railway or canal bridge or railway station vested in or under the control of any local or road authority.

Testing of gas.

Miscellaneous.

29. The Undertakers shall so far as is reasonably practicable lay all pipes hereafter laid or renewed at such a depth below the surface of the streets as may permit the use of steam rollers for street repair without any risk of injury to the pipes.

Depth at
which pipes to
be laid.

A.D. 1903.

Wexford.

Power to re-
fuse to supply
persons in
debt for other
property.

Gas consumers
to give notice
to Undertakers
before remov-
ing.

30. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

31. Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises. Provided that notice of the provisions of this section shall be endorsed upon every demand note for gas rent.

Notice of dis-
continuance.

32. A notice to the Undertakers from a consumer for discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Period of
error in de-
fective meters.

33. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers.

No penalty in
case of un-
avoidable
cause.

34. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by unavoidable cause or accident.

Undertakers
to pay interest
on deposit.

35. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

8 & 9 Vict.
c. 16. s. 140
incorporated.

36. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order. Provided that for the purpose of such incorporation the expression "the Company" in the said section shall be construed to mean the Undertakers.

Time for
making up and
forwarding
accounts to
local autho-
rities.

37. Notwithstanding anything contained in section 35 of the Gasworks Clauses Act 1871 the annual statement of accounts of the Undertakers shall be made up to the thirtieth day of June in each year and forwarded to the local authority of every district within the limits of supply on or before the twenty-fifth day of December next following and the said section shall for

the purposes of this Order be read and construed as though in lieu of the thirty-first day of December and twenty-fifth day of March being named therein the thirtieth day of June and the twenty-fifth day of December had been so named. A.D. 1903.
Westford.

38. Nothing in this Order contained shall alter vary or affect any contract or agreement duly made or any liability incurred before the commencement of this Order. Saving of
existing con-
tracts &c.

39. If the corporation shall introduce a Bill into Parliament and bonâ fide promote the same in any one of the next three sessions of Parliament available for Private Bill legislation to empower them to purchase the undertaking of the Undertakers the Undertakers shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase and for that purpose the Undertakers shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if the corporation obtain an Act authorising such purchase and give a written notice of their intention to purchase within six months of the passing of such Act the Undertakers shall at the expiration of such six months sell and transfer and the corporation shall purchase and acquire the undertaking property rights powers and privileges of the Undertakers subject to all their existing mortgages obligations and liabilities. Purchase of
undertaking
by corporation.

Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Undertakers and the corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the corporation and the expression "lands" shall mean the undertaking of the Undertakers Provided that for the purposes of any such arbitration the sale and purchase shall be deemed to be a sale and purchase by agreement and not by compulsion :

Provided also that in assessing the sum to be paid by the corporation to the Undertakers the value of the undertaking shall not be deemed to be enhanced or reduced by reason of the making of this Order.

The corporation shall in the event of such purchase also pay compensation to any officers and servants in the regular employment of the Undertakers who shall not be retained by the corporation in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Undertakers at the passing of such Act in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Undertakers to the corporation the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and no officer or servant who has been in the employment of the Undertakers for fourteen years or upwards shall lose his right to compensation as aforesaid by reason of his declining to continue in the service of the corporation.

A.D. 1903. 40. All the costs charges and expenses of and incident to the applying
Wexford. for preparing obtaining and confirming this Order or otherwise in relation
Costs of Order. thereto shall be paid by the Undertakers.

SCHEDULE.

GAS LANDS.

A piece of land with gasworks and other buildings thereon in Trinity Street in the borough of Wexford and parish of Saint Michael's of Feagh bounded on the north partly by stores in the occupation of Nicholas Devereux and Company and partly by premises in the occupation of James Stafford and partly by premises in the occupation of John Bacon and Company Limited on the east by Trinity Street on the south by land in the occupation of the representatives of Matthew Duigan deceased or their under-tenants and on the west partly by land in the occupation of the said representatives of Matthew Duigan and partly by the Military Barracks and partly by Slaughter House Lane.

A piece of land with the buildings thereon in Trinity Street in the said borough of Wexford and parish of Saint Michael's of Feagh bounded on the north-west by premises in the occupation of Nicholas Devereux and Company on the east by Trinity Street and on the south-west by premises in the occupation of John Bacon and Company Limited and Owen Murphy.

A piece of land with the buildings thereon in Trinity Street in the said borough of Wexford and parish of Saint Michael's of Feagh bounded on the north by premises in the occupation of John Bacon and Company Limited on the east by property occupied by the Great Southern and Western Railway Company on the south by a passage in the occupation of the Wexford Harbour Commissioners and on the west by Trinity Street portion of which said premises is sublet and in the occupation of John Bacon and Company Limited.

A piece of land with the buildings thereon in Trinity Street in the said borough of Wexford and parish of Saint Michael's of Feagh bounded on the north by a passage in the occupation of the Wexford Harbour Commissioners on the east and south by property occupied by the Great Southern and Western Railway Company and on the west by Trinity Street.

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